

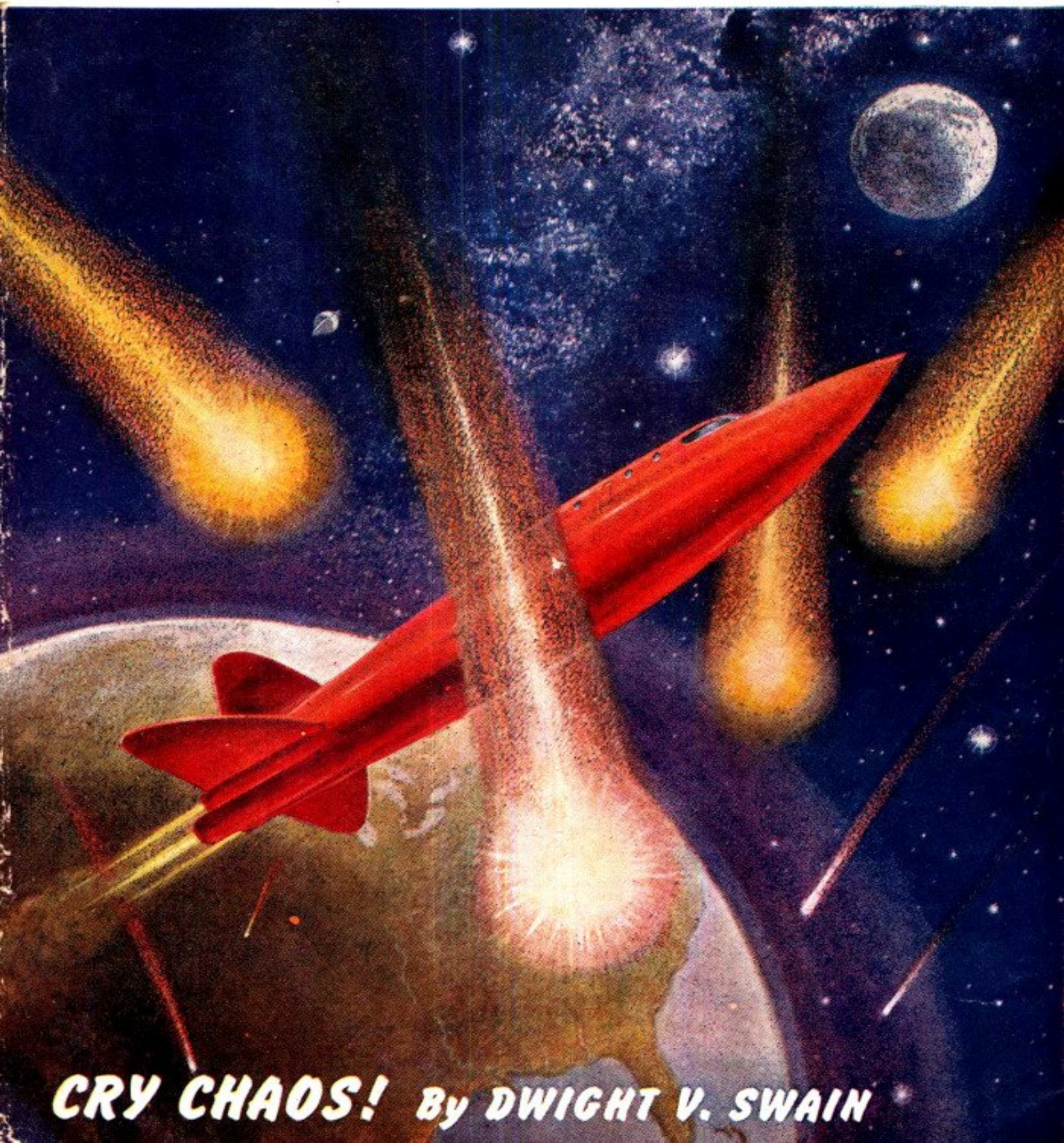
ANC

IMAGINATION

STORIES OF SCIENCE AND FANTASY

SEPTEMBER 1951

35c



CRY CHAOS! By DWIGHT V. SWAIN

ANC

IMAGINATION

STORIES OF SCIENCE AND FANTASY

SEPTEMBER 1951

35c



CRY CHAOS! By DWIGHT V. SWAIN

The Project Gutenberg eBook of Master Race

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Master Race

Author: Richard Ashby

Illustrator: Hannes Bok

Release date: May 3, 2021 [eBook #65246]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/65246

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK MASTER RACE

MASTER RACE

By Richard Ashby

**The Invaders sent a scout to Earth to find out
what kind of life inhabited it. But what sort of a
conclusion could they draw from comic book heroes?**

**[Transcriber's Note: This etext was produced from
Imagination Stories of Science and Fantasy
September 1951**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**



One moment he was piloting a fast plane over dangerous green jungles ... and the next Eddie was wide awake and peering through the gloom. Across the room Rags was whining softly and sniffing the damp night air that rolled in through the open window. The Scotty was excited, Eddie saw, and it must be something out of the ordinary for Rags' whimpering carried an undercurrent of perplexity and fear ... and the dog wasn't a coward.

The boy called softly to him, but Rags, after tossing back a swift glance of recognition, put his forefeet up on the sill and peered, muttering, out across the pastures.

Eddie slipped from his bed and padded over to the window. As he comfortingly ruffed the fur behind the Scottie's ears, he listened intently at the night. At first he heard only the ordinary country sounds—roosters crowing over at the next farm, the muffled thumping of stock shifting about in the barn and against the corral fence; the flittering and high chirping of birds in the cottonwoods and pepper trees. He took the dog in his arms and was about to go back to bed with him when he became aware of a sound that was very much out of the ordinary. A sound, Eddie decided, something like standing outside the Baptist church in Riverside when the organist was playing low, vibrant notes inside.

Eddie wondered how he could have first missed the sound, so firmly had it now become established. Where could it be coming from? It was, he guessed, about an hour till dawn, and no tractors or other farm machinery should be running. And it wasn't a radio.

A plane?

Leaning from the window he glanced upwards, then gasped in astonishment. Goose pimples of excitement tingled his skin, for there in the sky, above the oak tree on the ridge hung a pattern of sharp white lights. They were little lights, as if someone had strung together a fanciful arrangement of Christmas tree bulbs, then sent them dangling aloft beneath a kite.

Rags' mutterings became deep and angry. Finally he gave vent to a short sharp bark.

Instantly Eddie quieted the dog. Lights or not, his mother had made it plenty clear about Rags' being in the house.

Crouching on the floor, both arms about Rags, Eddie whispered words of reassurance while he stared up at the strange sparklings. The oak tree—the one with his tree house—was a scant quarter mile from where he knelt, and he wondered if its being so high on the ridge had caused it to draw some sort of lightning to itself. He'd read of that happening ... chain lightning. Or was it called Fox Fire? Eddie couldn't remember. Anyway, it looked something like that, he imagined.

But no lightning, he remembered, made a noise like a machine. Unconsciously, he'd hooked sight and sound together.

Frowning, Eddie let go of the dog. If the lights had been over the barn or garage, he'd have gone to tell his father. Or over the garden, his mother. But the tree house didn't concern them. It was his, and even if it hadn't been an hour before dawn he wouldn't have told his parents. He had things in there he shouldn't have, and it wouldn't do for either mother or father to go snooping around, even if they couldn't find his secret ladder and climb it.

He returned to the window.

Something thrashed in the highest branches of the oak. Rags began his whining again.

There was but one thing to do. He found his moccasins by the night table and pulled them on, threw a leather jacket on over his pajamas. From the wall above his desk, Eddie took down his .22, broke it, slipped in a shell, and tiptoed from the house.

The humming was stronger outside. Not louder, exactly, but more easy to feel. He crouched down, the way he'd seen commandos do in pictures, and began to run, holding the rifle at ready before him. And for once, Rags seemed content to stay at his side and not go dashing along ahead up the path. As they took the turn by the big rock a startled nightbird plunged out of the bushes and took wing. The bird's violent rush brought caution to Eddie and he slowed his run to a walk. Suppose, he thought, that someone in a helicopter or maybe a balloon was hanging over the tree house. Spies, probably. And suppose they wanted the tree house for a headquarters.

He stopped, looked back down at the house dimly outlined in the starlight. Suppose, he continued, that there were too many of them. He'd just better sneak up quiet and see what was going on.

He eased himself around another turn in the path and came again in view of the oak. The lights were still there, but they no longer looked to be mere points of brightness against an empty sky. He stopped, more puzzled than ever ... they looked like navigation lights on a ship, and a couple of them like the glow from inside a radio. And all of them were swaying gently in the night wind, twenty feet or so above the tree.

Rags went slowly ahead, two feet, three, four, then stopped ... belly almost to the dust. His teeth shone in a soundless snarl, not a muscle of his body moving. Eddie had never seen him act like this, not even when the bear had

come down into the valley to raid for chickens. Rags was plainly terrified, and something of the dog's emotion communicated itself. The boy bit his lip grimly, then strained to listen, heard what the dog was hearing; someone ... something was moving about up in the oak.

Some of his fear gave way to anger. "Messin' around in my tree house!"

He gripped the rifle tightly, took two determined steps forward. The third step he never completed. He was unconscious when he pitched into the ground. And when Rags leaped after him, he too crumpled as if dead....

The Commander left his report-strewn desk and strode heavily over to the forward port. Glumly, he looked down at the frosty pitted surface of the satellite a thousand miles away, and in his imagination saw the planet that swung on the dead orb's opposite side. It was nonsense to have to hide behind a moon from such a primitive planet, waiting and waiting like a coward for reassuring information. But such prudence had ever been part of holy Law.

He sighed, turned away from the huge wall of window. Sometimes one wondered about Law, he mused darkly. One did not disobey, of course, but one could not help wondering sometimes. And occasionally one even wondered the blackest heresy of all—was it really important to kill all life everywhere for the sake of colonization.

The Commander caught sight of his reflection in a polished door panel. His own hard eyes glowered out from the reflection accusingly, so he pulled up his shoulders and put all suspicion from his mind. Would he not destroy any of his people for such thoughts? Then he must not allow himself to entertain such blasphemy. Naturally, colonization was all-important. That was Law.

Picking up the pictures taken when they had first flashed into this system, the Commander saw again the nature of the beings they were about to exterminate. That they were ignorant savages, quite unworthy of the usual precautions now being taken, was plain to see. Their atmosphere showed heavy traces of carbon combustion, a certain indication that the creatures were inefficient, for who but a savage would burn matter to obtain power?

The amount of radioactivity present in their gaseous envelope was so tiny as to prove that they had little or no knowledge of atomic power. There were no *frell* vibrations apparent; imagine existing without an understanding of simple magnetics!

He picked up an enlargement of one portion of a land mass, put a hand magnetic lens over it. The magnification showed clusters of dwellings, linked together by lines and double lines upon the ground—certainly the ultimate proof of low-order civilization, when beings chose to live clustered together, commuting by land, when they could spread themselves out over the surface of their planet and use the roads of the sky.

The Commander made a sign in the air with his fingers and a door popped open at the end of the vast room. An aide ran toward the desk, halted, covered his face in salute.

"Sir?"

"How long has the scout been gone?"

The aide removed his hands from his eyes. "A day and a night, sir. He should be back any time, now."

"Fool!" The Commander roared out the word. "Did I ask for your guesses? I know he's due back. He is, in fact, one hour overdue." He did not know if this was or was not true, but it was good discipline policy. "Lock him away when he arrives."

The other covered his face respectfully. "Yes, sir." He turned, ran from the desk and out the door.

For a few minutes the Commander kept busy by calling the ten ray-centers of the three mile long ship, demanding to know if they were ready to beam. They were. He then spent a while ordering all unit leaders to hold their sections in readiness for inertialess drive. The unit leaders protested politely that they were. He called engine, commanded that they "look sharp." Meekly they assured him that all was well.

With only small satisfaction, the Commander rose from his desk, paced slowly over to the port again. As he gazed out at the moon's bland surface, he reflected that there was something about this nine planet system they were in that made him edgy ... made him want to keep active and alert.

And where was that thrice-blasted scout?

He decided to have him flogged when he returned. Good discipline policy.

The Scout woke from his drunken sleep and glanced at the clock on the dash of his little craft. It was very late, he saw. He would have to think of a fine excuse when he returned or they would put him in Truth and learn that all Scouts took the precious freedom of voyages to become intoxicated for a while.

Not much time! He would have to take what he could find in the vicinity. Small difference it made, though, since the beings of the planet were surely doomed.

The Scout yawned, then lifted the ship from the mountain and arrowed it down into the folds of the valley. His visor translated the immediate night into light, showing him the typically repugnant surface features of a type J planet: Foliage, sharp young geology, water flowing in natural beds. A world like a hundred others he'd visited in the name of Law.

When the floor of the valley came up he leveled off, then silently sped along in search of dwellings. Beneath him, on level stretches of land, stood odd four-legged creatures. The dominants of this world? he wondered. Probably not. The extremities of their limbs appeared to be too blunt and crude to do even the simple tooling he'd noticed during his flight in. Beasts of transport, no doubt. Boldly, he swooped low over a group, scattering them in panic.

The meadow ended with almost sheer mountain wall, and the Scout whipped his craft up its face and down the opposite side. Something flickered in his vision screen and he swung the controls. A dwelling! In a moment he was back over it, hanging motionless. Sure enough, a revolting crude shack that nestled high in the branches of one of this world's surface growths.

This was it. There was no time nor need to search further.

He locked the controls, then turned on the deadly screen that would kill all life directly beneath, save one properly shielded such as himself, and would stun all life attempting to enter the edges of the field.

Pulling on his helmet, the Scout reached to the stud at his belt and reduced his weight to but a fraction of itself. Then he opened the hatch and clambered out into the air.

His first few minutes of exploration in the tree house were disappointing. There was no life, no corpses about for him to dissect and study. But the hunting club puzzled him. Obviously tooled by machinery and scuffed from much killing, it bore what might be a word burnt into its thickened end: "SPAULDING." He realized he was in an extremely primitive section of the planet, for this weapon was, no doubt, a trade article from some more advanced portion of the globe. Too bad he'd had to land in this region. Dull.

The club he chucked into the bag over his shoulder.

A round object, made of some fairly soft material, with seams twisting over its surface next caught his eye. He took it up, shook it. It, too, bore the symbol "SPAULDING." Probably a totem word. Perhaps the sign of this particular tribe. He put it with the club. It was followed by a small package of soft white cylinders which were stuffed with crumbles of dried weed. Each cylinder bore the sign "CAMEL" as did the container, which also showed a beast, somewhat like those he had buzzed.

And beyond that there was nothing.

A simple people indeed, he pondered. He was about to leave when he noticed the stack of artifacts in one corner. The Scout bent to examine them. They seemed to be composed of the same material as the white of the "CAMEL" cylinders, but thicker and bound together in long wide flat construction. There were bright colors on the outside of each, and just as he discovered that the individual leaves of material could be separated and turned, the alarm bell sounded twice in his helmet. Life had blundered into the outer edges of his field.

Hastily, the Scout put a score of his latest finds into his sack and left the tree house. And without bothering to search for the life that had triggered his alarm (Law specified a Scout was to flee in such an instance) he adjusted his weight and rose up to his waiting ship.

Minutes later he had passed the world's satellite and was in view of his parent craft.

The Commander's first action was to order the Scout flogged before his comrades as an example of what awaited those who became lax in the performance of important duties. His second was to assemble the Council of Experts. When the eight old men had taken their places about the table, the Commander saluted them in the name of Law, then summoned his aide. "Is Decontamination through?"

"It is, sir."

"Then have the findings brought in."

The officer ran from the room and returned in a moment with the Scout's bulging sack. Gently he placed it in the center of the round table before the council. After saluting he took his leave again.

"Gentlemen," began the Commander, "we are met again to pass judgment on a corrupt, life-harboring planet. By the authority vested in me through the line of my father I charge you with the voice of Law." And so on, and on, with the ancient words of the ritual. The eight old experts hardly listened. They had sat through countless identical sessions during the hundreds of years of their lives. Theirs was but to view the oddities that would presently be arranged before them, make mental records of their descriptions, and offer one or two tentative guesses as to the nature of the articles. But in any event, the action that followed would be the same. The creatures responsible for the articles would shortly be snuffed out ... in the glorious and awful name of Law.

So they hardly listened.

When the Commander had finished with the rites of the occasion he unsnapped the bag and after peering within it, gingerly brought out the Scout's first find. Only now did the old men appear to take much notice. A few even leaned forward slightly. All eyes centered on what their Commander held.

"A phallic object?" asked the youngest.

"No. A lever," said the eldest.

"For killing," added the next.

"But it was made by machine," put in a fourth.

For a moment they were silent. The Commander placed the "machine-made killing-lever" on the table. It described a short little half-roll, bringing the printing into view.

"A religious design," said the youngest. "Obviously pagan."

"But rather well worked."

No one found anything further to say, so the Commander brought forth from the bag the next object. A mild flurry of interest ensued when it was discovered that this soft globular thing bore the same "religious design." But the sages would not venture an opinion as to the thing's purpose, so the Commander took out the package of white cylinders.

Only the next to the eldest made any comment. He claimed that he had seen such articles in his youth, brought out from a system of three worlds that swung above a nova. The white things there, he reminisced, were units of value ... useful in bartering. They were designed to be spent quickly, lest the stuffing fall out. The other experts agreed that these were no doubt also monies.

The Commander had been listening with but half an ear. Privately, he had long considered the experts to be but a muttering pack of senile dolts ... dead weight, useless cargo on the ship. They worked not, neither did they breed. But Law demanded their presence. The Law, he mused, seemed strange at times.

He discovered the Council was waiting for him. Frowning to cover his embarrassment, he took out the last of the Scout's finds. For a moment all of them were struck by the bright colors on the flat surface. The one old man reached out a trembling hand. "Records," he murmured incredulously. "Records such as our own race is said to have once made, long, long ago before Law." Reverently, he examined the cover, then with remarkable agility for one so decrepit he jumped to his feet and flung the thing from him. His face twitched with horror.

The others shocked and disbelieving, fell to examining the rest of the new articles. In a moment, cries of alarm filled the council room. Chairs were upset, dignity forgotten. Only the eldest retained his composure, although with difficulty, for he could hardly manage to control the palsied shaking of his hands. The astonished Commander leaned over his shoulder and watched as the ancient turned the pages.

What he saw made the blood drum in his ears, made his vision swim, and only faintly did he hear the old one's croaking words. "Praise to Law, which we so carelessly accepted, for Law has saved us from the fiendish denizens of this planet. Had we attempted to exterminate them, their space armadas would have taken instant revenge. For they are obviously mightier than we." He put down the bright record of space craft vaster than the one which they occupied and took up another. On its cover was depicted a world being blasted into flaming wreckage, and within was shown the pictorial history of a space fleet, engaged in repelling an alien invasion, and who followed up their successful repulse by annihilating the entire system of the aliens.

Five more of the record books did they examine before the Commander's stunned mind at last reeled beneath the hideous concepts and he could look no more. Dumbly, he managed to reach the phones and order the ship thrown into emergency drive to some far and lost point in space and dimension.

And as he waited for the shuddering wrench that signalled interdimensional shift, he tried to forget the horrors they had so narrowly escaped: Creatures who could make themselves invisible, who had mastered space travel, who worked in magic more powerful than that of Law's, who could whiff out entire solar systems, who could survive incredible mishaps and hardships. Creatures who were no less than Gods!

A wave of fear tore at the Commander as the glittering moon faded away. Eternal nothingness of grey enclosed the ship....

The sun was up when Eddie recovered consciousness. Stiff and cold, he sat and looked around sleepily a moment before remembering. Then, as he saw Rags sitting before him, tail wagging happily, it all began to come back:

Last night, sometime; humming lights above the tree house, someone moving about up there, himself sneaking up to see, then ... nothing. He must have tripped and knocked himself out, somehow. Eddie snatched up the .22 and aimed it at the tree. "Whoever's up there," he said, getting to his feet, "had better come on out!"

Nothing happened.

Eddie bent down cautiously, his eyes still fixed on the tree house, picked up a rock and hurled it through the shanty's open door. A bird fluttered from the gnarled oak, sailed across the morning meadow chirping angrily.

"This is your last chance. Come on out, or I'm comin' up and get you!" The bird's being there made him quite sure that everything was all right, so after a moment he pulled the knotted rope from its concealment in a cleft of the tree and went up hand over hand.

A strange odor lingered inside the shack. Something like ... Eddie sniffed, frowned ... something like a freshly blown fuse, but outside of that nothing seemed amiss at first. Then he discovered his softball and bat were missing. He found he didn't care too much. The season was over anyway; and besides, hunting and riding and fishing were more fun.

He looked further.

The cigarettes! He hoped the thief wouldn't snitch on him to dad. But that didn't make too much sense, he realized. The thief ... a tramp, probably, was far away by now, maybe at this very minute trying to trade the ball and bat for a meal or a drink.

And those humming lights? Even now he wasn't too sure he'd seen them. Stars, probably. The Little Dipper, or maybe fireflies, or lightning. Sure.

He turned to go. The sun told him it was almost seven o'clock. Mother would be furious if she found him out in the morning without having dressed properly, or eaten.

It was then he saw that something else was missing, but because it was so late he didn't stop to worry. "Mandrake The Magician," "The Invisible Boys," "Buck Rogers," "Bat Man" ... they were all old comic books. He'd finished with them months ago.

Eddie clambered down the rope, and seconds later he and Rags were joyfully racing along the trail that led to home.

It was a beautiful morning.

*** END OF THE PROJECT GUTENBERG EBOOK MASTER RACE

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.